

25PSCV04505 25PSCV04505

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Case Number: 25PSCV04505 Hearing Date: June 23, 2026 Dept: H

Richardson v. Beth's Learning Center LLC, Case No. 25PSCV04505

ORDER ON EX PARTE APPLICATION FOR TEMPORARY RESTRAINING ORDER

The Court has read and considered Plaintiff Misty Richardson's ex parte application for a temporary restraining order and order to show cause regarding a preliminary injunction, as well as the accompanying declaration. For the reasons stated herein, the application is denied without prejudice to Plaintiff seeking relief through the filing of a regularly noticed motion. The Court denies the application without calling the matter for hearing. (Wilburn v. Oakland Hospital (1989) 213 Cal.App.3d 1107, 1111 [decision to hear oral argument is within the discretion of the court].)

Ex parte proceedings "are designed to afford relief on an essentially emergency basis." (Newsom v. Superior Ct. (2020) 51 Cal.App.5th 1093, 1097.) As such, an applicant seeking ex parte relief "must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte." (Cal. Rules of Court, rule 3.1202(c).) "A trial court should deny an ex parte application absent the requisite showing." (People ex rel. Allstate Ins. Co. v. Suh (2019) 37 Cal. App. 5th 253, 257.)

Here, Plaintiff has not shown that irreparable harm will occur before the matter can be heard on a regularly noticed motion. The application does not provide sufficient admissible evidence of imminent dissipation or concealment of assets beyond the already-completed sale, nor does it demonstrate extraordinary circumstances warranting ex parte injunctive relief. Accordingly, the application is denied.

Plaintiff is free to seek the requested relief by filing a regularly noticed motion supported by admissible evidence.

Finally, in preparing for the instant ex parte application, the Court saw reference to another case that brought by Plaintiff and dismissed without prejudice. It appears that Plaintiff filed another similar case in Case No. 24PSCV01778. "A pending civil case is related to another pending civil case, or to a civil case that was dismissed with or without prejudice, or to a civil case that was disposed of by judgment, if the cases: (1) Involve the same parties and are based on the same or similar claims; (2) Arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact; (3) Involve claims against, title to, possession of, or damages to the same property; or (4) Are likely for other reasons to require substantial duplication of judicial resources if heard by different judges." (Rule of Court, rule 3.300.) Pursuant to California Rules of Court, Rule 3.300, Plaintiff is ordered to file a Notice of Related Case in both this case and in Case No. 24PSCV01778. On the Court's own motion, the Court sets an Order to Show Cause Re Filing of Notice Related Case for July 29, 2026, at 8:30 a.m. (the same date/time as the Case Management Conference and Order to Show Cause Re: Failure to File Proof of Service).

Plaintiff is ordered to give notice.